

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on September 22, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On September 22, 2023, a complaint was filed with this Agency by Ms. A.A.A. (hereinafter, the complainant) against Ms. B.B.B. for not having duly attended to her right of access.

On September 22, 2023, a complaint was filed with this Agency by Ms. A.A.A. (hereinafter, the complainant) against the COMMUNITY OF OWNERS C.C.C. for not having duly attended to her right of access.

On September 23, 2023, a complaint was filed with this Agency by Ms. A.A.A. (hereinafter, the complainant) against Mr. D.D.D. for "(...) disclosing in the agenda of the meeting notice the existence of this complaint and the need for its withdrawal by the board."

This Agency initiated the processing of the corresponding files against each of the indicated entities, with the present procedure being against the COMMUNITY OF OWNERS C.C.C. (hereinafter, the respondent).

The complainant exercised the right of access before the respondent, without receiving a response. The complainant states that on November 22, 2022, she filed a complaint with the Official College of Property Administrators against the property administrator Ms. B.B.B., which was archived due to lack of jurisdiction.

Despite the fact that the aforementioned Official College did not admit the complaint, it forwarded its content to Ms. B.B.B., who shared with some co-owners of her property the fact that she had received a complaint against her, as recorded in the notice and minutes of the ordinary general meeting held on January 12, 2023, and that she has requested the right of access from the property administrator regarding the complaint mentioned in the cited minutes, via email dated August 14, 2023, to the address ***EMAIL.1, without having received a response.

Furthermore, the complainant states that she has requested the right of access from the president and two other co-owners via email dated August 14, 2023, ***EMAIL.2; ***EMAIL.3; ***EMAIL.4, regarding the complaint mentioned in the cited minutes, without having received a response.

A copy of the notice, the minutes, the emails, and the submitted forms is provided.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned complaint was forwarded to the respondent, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

There is no record that the respondent has submitted any response.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on December 22, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing procedure, so that within ten working days it could present the allegations it deemed appropriate.

The respondent has indicated that "(...) this Community of Owners processes the data of the owners using compliance with a legal obligation as a legitimate basis, in accordance with Article 6.1.c) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 (hereinafter GDPR), specifically the Horizontal Property Law (hereinafter LPH).

In the same way, for the ordinary management of the Community, our entity also has the support of a Property Administration, which acts as a data processor on behalf of the data controller, offering sufficient guarantees and applying appropriate technical and organizational measures to ensure that the processing of personal data complies with the requirements of the applicable and current data protection regulations.

(...). Following the complaint received, and as a demonstration of our commitment to compliance with data protection regulations, we have contacted the complainant to convey the response to the alleged exercise of the right of erasure, notifying her via the email address provided in her request, explaining the situation and apologizing for any inconvenience caused.

We must indicate that the attention, receipt, and response to the exercise of rights by owners and third parties was a management delegated to our Property Administrator. (...) After investigating the incident, the cause that led to the failure to respond to the complainant was due to an unintentional human error in managing the email, (...)

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Regarding the claim, the exercise of the right of access has been managed, informing you of the purposes of the processing, the categories of personal data processed, the recipients if applicable, the retention periods, the existence of automated decisions, and the right to lodge a complaint or exercise other rights related to data protection regulations.

(...) In compliance with data protection regulations, once this procedure has been notified, we have formally responded via email to the claimant."

The responding party has provided a copy of the email dated February 22, 2024, sent to the claimant.

FOURTH: After examining the document submitted by the responding party, it is forwarded to the claimant, so that, within ten working days, they may submit any allegations they deem appropriate. The claimant indicates that the right has been addressed outside the timeframe established by data protection regulations.

"(...) this party wishes to state that they have not authorized at any time the publication of the existence of a complaint against an administrator in their name in a call for a meeting of the community of property owners nor in the minutes of the mentioned meeting, nor the oral discussions that took place regarding this, which is why they consider it to be an unlawful processing. In this regard, it should be noted that the community does not recognize the processing; it only mentions, 'the only information that is made known is the existence of a complaint against the property administrator' (...) therefore, it obviously cannot claim any purpose.

FIFTH: Having granted a hearing to the responding party, they reiterate, in summary, what has already been previously stated.

The responding party adds, regarding the statements made by the claimant concerning the lack of authorization for the publication of the complaint against the administrator, that, "(...) The mention in our allegations of 'the only information that is made known is the existence of a complaint against the property administrator' should be clarified in the sense that the management of the complaint against the administrator is included within the operation of the processing 'Administration of the community of property owners,' which was communicated to this Community by the Administrator in compliance with a legal obligation, specifically Article 20 of Law 49/1960, of July 21, on Horizontal Property (hereinafter LPH), which establishes that it is the responsibility of the Administrator: 'To ensure the proper management of the house, its facilities and services, and to make the appropriate warnings and notifications to the owners for these purposes.'

As we have mentioned previously, the only personal data included in the minutes was the surname of the claimant. We consider that this is a data that has been directly provided by the claimant at the time, and that, in

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In any case, there exists, as this same Control Authority has recognized, a legitimate interest in knowing the names of the other owners of the property.

Based on that legitimate interest, it was considered necessary to inform the Community of these facts, with greater relevance if we take into account that from the statements of the claimant herself, it can be inferred that at the time of filing the complaint, she held the position of president.

Therefore, the legality of the information discussed in the meeting and also recorded in the minutes is supported by Article 6.1.c) of the GDPR due to the obligation to comply with a legal obligation. Since the Community needed to be aware of whether the complaint against the Administrator had been filed in her name (individually) or in the name of the Community, as in the event that it had been filed in the name of the Community, it should have been resolved in the Owners' Meeting in accordance with Article 14 of the LPH.

As we mentioned earlier, the information regarding the existence of a complaint is not a personal data in itself but becomes so when it is related to the surname of the claimant. In any case, we consider that there was a sufficient processing operation and a recognized legitimate basis to inform the Community of these facts, so that they could decide, as was ultimately done, that the Community was not the promoter of the complaint.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each control authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by an interested party and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the control authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, to respond to this Agency within one month, and to prove that the necessary response had been provided to the claimant.

The result of this forwarding did not allow for the understanding that the claims of the claimant had been satisfied. Consequently, on December 22, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement. After that period, the interested party may consider

their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the interested party under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

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In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of

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Obtaining a copy of the personal data subject to processing will not negatively affect the rights and freedoms of others.

V

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in the data protection regulations. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and evaluated, excluding the other issues raised by the parties.

In the case analyzed here, and taking into account the provisions of the first paragraph of this Legal Basis, the claimant exercised their right of access and, after the period established in the aforementioned regulations had elapsed, their request did not receive the legally required response, as access was not granted.

The aforementioned regulations do not allow for the request to be disregarded as if it had not been made, leaving it without the response that the data controllers are obliged to issue, even in cases where there are no data of the interested party in the entity's files or even in those cases where the requirements are not met, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question should not be considered.

Therefore, the request made obliges the data controller to provide an express response, in any case, using any means that justifies the receipt of the response.

In this case, however, it is noted that during the processing of the complaint that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the responding party has provided documentation proving the communication sent to the interested party addressing the right or informing about the decision made regarding the request. This response took place, as stated in the aforementioned documentation, on February 22, 2024. Therefore, it occurred after the established deadline.

In this regard, it should be clarified that the response that corresponds to be made cannot be expressed merely as part of an administrative procedure. Consequently, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information in the file with the regulations referred to in the preceding sections, it is appropriate to uphold the present complaint on formal grounds due to the response being issued late, without requiring the performance of additional actions by the data controller in order to issue a new certification regarding the attention to the right.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO UPHOLD on formal grounds, the complaint filed by Ms. A.A.A. against the COMMUNITY OF PROPERTY OWNERS C.C.C. However, the issuance of a new certification by the responding party is not warranted, as the response was issued late, without requiring the performance of additional actions by the data controller.

SECOND: TO NOTIFY this resolution to Ms. A.A.A. and to the COMMUNITY OF PROPERTY OWNERS C.C.C.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6

of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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